

		judgment. [CCP § 683.160(b)].’ (Ahart, Cal. Practice Guide: Enforcing Judgments and Debts, supra, ¶ 6:78, pp. 6A–41 to 6A–42.) <u>Thus, there is no specified time period within which the renewal of judgment must be served on the judgment debtor. The statute instead provides that the judgment creditor may not initiate any enforcement proceedings unless and until the judgment debtor has been served with the notice of renewal.” (Goldman v. Simpson (2008) 160 Cal.App.4th 255, 262, fn. 4 (underlining added).)</u> Accordingly, the court finds Defendant’s motion is untimely. Moreover, even if the court could properly and were to construe the motion as one attacking the underlying judgment as void for lack of proper service, the court would deny the motion because, as explained above, the court finds Defendant’s claims she was not served with the summon and complaint or the notice of renewal lacking in credibility. Based on the foregoing, the motion is DENIED. Defendant’s Request for Judicial Notice (ROA 34) is GRANTED under Evidence Code section 452(d) as to the existence of the records, but not as to the truth of any disputed facts asserted therein. (<i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) Plaintiff is to give notice of this ruling.
13.	Seton Hall University vs. Spitz 2026-01555640	Before the court is the special motion to strike pursuant to Code of Civil Procedure section 425.16 filed by respondent Eric Spitz (Respondent) directed to the petition to enforce deposition subpoena filed by petitioner Seton Hall University (Petitioner). For the reasons set forth below, the motion is DENIED. Initially, the court notes Respondent’s opening brief is 20 pages and thus exceeds the 15-page limit set by California Rules of Court, rule 3.1113, subdivision (d). Respondent’s ex parte application to file an overlength memorandum was denied based on Respondent’s failure to follow proper procedures for making such request and his failure to make an adequate showing justifying such relief. (ROA 78.) Based on the foregoing, the court exercises its discretion and declines to consider the last five pages of Respondent’s opening brief. (See Cal. Rules of Court, rules 3.1113(g), 3.1300(d).) Given the court’s conclusion below that Respondent failed to establish section 425.16 applies,

		considering these additional five pages would not change the outcome of this motion. The court also notes the motion appears to be moot because the court already ruled on and granted Petitioner’s petition to enforce deposition subpoena on May 28, 2026, prior to Respondent properly and timely filing this special motion to strike. (See ROA 67.) Although Respondent attempted to file the special motion to strike at 10:39 p.m. on May 26, 2026, prior to the May 28th hearing, the filing was rejected because Respondent failed to comply with the applicable filing requirements. Specifically, Respondent failed to reserve a hearing date for the motion. (See Notice of Rejection at ROA 64.) Respondent then belatedly resubmitted the motion to strike on May 29, 2026 (see ROA 72), which is after the court already had issued its ruling granting the petition. Respondent contends the motion was timely filed under California Rules of Court, rule 2.259(c), and the filing date actually is May 26, 2026. (Spitz Decl., ¶ 16.) Rule 2.259(c) states, “If a technical problem with a court’s electronic filing system prevents the court from accepting an electronic filing on a particular court day, and the electronic filer demonstrates that he or she attempted to electronically file the document on that day, the court must deem the document as filed on that day.” Respondent’s filing was not rejected due to a technical problem with the court’s electronic filing system. As mentioned, the motion was rejected because Respondent failed to reserve a hearing date for the motion. Rule 2.259(c) thus is inapplicable. The court also notes Respondent failed to appear at the May 28, 2026 hearing on the petition. (See ROA 67.) As the record demonstrates, Respondent phoned the courtroom moments before the scheduled hearing time to inform the court his counsel was unable to attend the hearing. As more fully explained on the record, no explanation was provided, no specific relief was requested, and no opposition to the petition was filed. The court therefore proceeded with the hearing. The court further notes Respondent filed a motion to quash the deposition subpoena which includes an alternative request to vacate or modify the court’s order granting the petition. (See ROA 150.) That motion, however, is not set to be heard until September 3, 2026. Respondent failed to show how the court can properly entertain this motion and strike the petition under the anti-
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		SLAPP statute when the court already has issued an order granting the petition and when no request to set aside that order has yet been heard. The court also notes the motion was filed outside the mandatory 60-day period established by Code of Civil Procedure section 425.16, subdivision (f) (i.e., motion must be filed within 60 days after service of document motion challenges). Respondent was personally served on March 27, 2026, and therefore this motion had to be filed by May 26, 2026. As noted above, although Respondent attempted to file the motion at 10:39 p.m., on May 26th it was rejected because he failed to reserve a hearing date. As such, the court finds the motion was not timely filed and Respondent did not obtain leave of court to file the motion outside the 60-day period. Regardless of any of the foregoing procedural issues and on the merits of the motion, the court finds Respondent has failed to establish the anti-SLAPP statute applies to the instant proceeding. In the moving papers, Respondent cited "<i>ContentGuard Holdings, Inc. v. Amazon.com, Inc.</i> (2017) 11 Cal.App.5th 906" for the proposition a petition to enforce a discovery subpoena is a "cause of action" within the meaning of section 425.16. That case, however, does not exist and appears to potentially be an AI hallucination. Petitioner called this to Respondent's attention a few days before the opposition was due. In response, Respondent filed a notice of errata withdrawing this case citation and explaining counsel researched the case and agrees it does not exist. The court appreciates Respondent's counsel withdrawing the citation, but counsel's responsibility is to confirm the accuracy of the case citations and representation made to the court before the document is filed with the court. No to do so only after the opponent calls it to counsel's attention. The court will not issue an OSC re sanctions at this time, but counsel is reminded and admonished that they are responsible for the accuracy of all representations they make to the court, and such accuracy must be confirmed prior to documents being submitted to the court. Respondent also relies on <i>Baral v. Schnitt</i> (2016) 1 Cal.5th 376, 393-96, and <i>Rusheen v. Cohen</i> (2006) 37 Cal.4th 1048, 1056. <i>Rusheen</i> did not involve discovery proceedings or discovery enforcement, and it dealt with a traditional cause of action for abuse of process. <i>Rusheen</i> is inapposite. <i>Baral</i> discussed the scope of the term "cause of action" in section 425.16 but did not address whether section 425.16 applies to a petition to enforce a discovery
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	subpoena. In addition, <i>Thomas v. Quintero</i> (2005) 126 Cal.App.4th 635, cited by Respondent in the reply, involved a petition seeking injunctive relief under the civil harassment statute, and is thus not analogous to the instant matter. Interestingly, although <i>Thomas</i> held section 425.16 applied to a petition for a civil harassment restraining order, it held section 425.16 did not apply to an application for a temporary restraining order under the civil harassment statute because such an application does not qualify as a cause of action or claim. (126 Cal.App.4th at p. 652.) Petitioner cites the controlling authorities that are much more on point. Specifically, the court finds <i>Tendler v. www.jewishsurvivors.blogspot.com</i> (2008) 164 Cal.App.4th 802, to be much more analogous to the instant proceeding. In <i>Tendler</i>, the court held a request for discovery subpoenas in a California court in aid of an out-of-state case was not subject to a motion to strike as a SLAPP because “a request for a subpoena, unlike a complaint, cross-complaint, or petition, does not contain any ‘cause of action’” and the request for a subpoena “merely seeks to compel the disclosure of information potentially relevant to a ‘cause of action.’” (<i>Id.</i> at p. 808; see also <i>In re Marriage of Benner</i> (2019) 36 Cal.App.5th 177, 190 (<i>Benner</i>) [“The California Supreme Court has also made it clear that, in order to prevail on a special motion to strike, the defendant must demonstrate that the “‘plaintiff claims to have been injured’” by the defendant’s conduct that is protected by the statute. (Citations omitted) . . . [A] special motion to strike (§ 425.16, subd. (b)(1)) may not be brought to attack pleadings that do not contain a cause of action.”].) Here, although the challenged proceeding is a petition to enforce a subpoena that already has been issued by the California court, the court finds the foregoing authorities to apply and control here. Indeed, much like in <i>Tendler</i>, the Petitioner’s petition merely seeks to compel the disclosure of information potentially relevant to a cause of action – i.e., to the causes of action asserted in the New Jersey case. Yes, this case involves the enforcement of the subpoena rather than its issuance, but the court does not find that distinction controlling. Petitioner’s petition does not contain any “cause of action” alleging an injury to Petitioner as a result of conduct by Respondent, nor does it contain allegations of protected activity that are asserted as “grounds for relief” against Respondent. Respondent cites no authority for his argument Petitioner’s request for monetary sanctions under
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		Code of Civil Procedure sections 2025.480(j) and 1987.2(a) for failure to comply with the subpoena, constitutes a "claim for relief" within the meaning of the anti-SLAPP statute. In <i>Benner</i>, the petitioner sought to add the party bringing the motion to strike to a martial dissolution procedure so the court could order that party to return all fees he was paid as a court appointed expert in the case. Despite the moving party being joined so the court could order the party to repay the fees he received, the Benner court still found section 425.16 did not apply. The same analysis applies here regarding the sanctions request. (<i>Benner, supra</i>, 36 Cal.App.5th at pp. 181-182, 193-196.) Moreover, the sanction request arises out of Respondent's complete refusal to comply with the subpoena, not any alleged underlying protected activity. Respondent has failed to show section 425.16 applies to the instant proceeding. Based on the foregoing, the motion is DENIED. Petitioner's "Objection and Motion to Strike" Respondent's new evidence and argument submitted on July 21, 2026 (ROA 180), is OVERRULED and DENIED. It appears Petitioner was able to fully respond to the new evidence and argument as Petitioner referenced the supplemental filings several times in its opposition. The parties' requests for judicial notice of the petition and supporting declaration filed in this action are GRANTED as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Evid. Code § 452, subd. (d); <i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) The court declines to rule on the parties' evidentiary objections as the cited evidence and objections are not material to the disposition of the motion. Counsel for Petitioner is ordered to give notice of this ruling.
14.	<i>People of the State of California vs. Benji</i> 2025-01482836	Before the court is the motion of plaintiffs People of the State of California ex rel. Farmers Insurance Exchange, Mid-Century Insurance Company, and Truck Insurance Exchange (collectively, Plaintiffs) to deem this case complex and transfer the matter to a judge assigned to the court's complex panel.